



File No.: EXP202404509

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 15, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 15, 2024, a complaint was filed with this Agency by A.A.A. (hereinafter, the complainant) against DIGI SPAIN TELECOM, S.L. (hereinafter, the respondent) for not having duly addressed their right of access.

The complainant states that, after requesting access from the respondent to the record of incoming and outgoing calls via email dated October 24, 2023, the entity responded by providing details of their consumption.

Dissatisfied with the response, the complainant contacted the respondent again through the same medium, indicating that they had received the details of the consumption of calls made from their mobile phone "(...) NOT the details of 'missed' incoming calls, as I indicated in the request I attached according to your instructions, between ***DATE.1 and ***DATE.2, which is what I was actually requesting, in accordance with Art. 4.2 and 5 of Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks. I kindly request that you send me as soon as possible the Details of the RECORD of UNANSWERED RECEIVED CALLS, including those from 'hidden number as such' (what we commonly know as 'missed calls') to my mobile ***PHONE.1, between the indicated dates from ***DATE.1 to ***DATE.2."

On October 25, 2023, the respondent replied that "(...) We inform you that we do not have the incoming or missed calls as you request."

Along with their complaint, the complainant submitted the access request and exchanged emails, as well as a resolution from the Secretary of State for Telecommunications dated February 15, 2024, in which they refer the matter to this Agency.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated that they indeed received the exercise of the complainant's right of access and that it was duly addressed.

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providing all those data that are legally available to provide. Among them, the outgoing calls, as their legitimacy in the processing of this data would be found in the needs for billing and collection for the services provided to their customers.

The responding party states that "On October 25 – as the claimant shares – DIGI receives an email confirming the availability of the made calls and specifying their desire to receive all unanswered incoming calls, including those made from a withheld number. In response to this request, Customer Service confirmed the unavailability of the information (p. 11 of the Request) in accordance with the default privacy policies established by this Company."

However, it claims that, regarding incoming calls, they do not have the same legitimacy. It justifies its inability to provide the data of incoming calls in Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks, indicating that the legitimacy for the processing of this data is found in Article 3 of this law, which establishes the data that must be retained by operators. Article 5 establishes a general retention period of twelve months, with exceptions, and Articles 6 and 7 regulate the general rules for the transfer of this data, which may only

be transferred by judicial authorization or to authorized agents as established in Article 6, where telephone operators are not included.

Furthermore, it states that the rights of third parties involved in the requested calls must be taken into account. The responding party indicates that it is available to this Agency to modify its position if the Agency reasonably deems that its position is incorrect.

Additionally, the responding party, in the document submitted to this Agency on May 13, 2024, indicates that this Agency is processing EXP202305727 of similar issues.

“Thus, we understand that all arguments presented in the various responses are transferable.

However, to facilitate the resolution of the present file, we bring here some of the considerations included in the same informative point of that File:

“Prior to this, it should be noted that the legitimacy for the processing of personal data related to outgoing calls by DIGI would be, among others, in the needs for justification of billing and collection for our services to our customers.

However, those avenues of legitimacy do not exist for incoming calls.

The only basis of legitimacy for the processing of personal data concerning incoming calls by DIGI is found in Article 3 of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks:

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Article 3. Data subject to retention (...)

Article 5. Retention period of the data.

1. The obligation to retain data ceases after twelve months from the date on which the communication occurred.

Regulations may extend or reduce the retention period for certain data or a category of data up to a maximum of two years or a minimum of six months, taking into account the cost of storage and retention of the data, as well as the interest of the same for the purposes of investigation, detection, and prosecution of a serious crime, after consultation with the operators.

2. The provisions of the previous section are understood without prejudice to what is provided in Article 16.3 of Organic Law 15/1999, of December 13, on the Protection of Personal Data, regarding the obligation to retain blocked data in the legal cases of cancellation.

Articles 6 and 7 refer to the rules and procedures for the transfer of data.

Article 6. General rules on data transfer.

1. The data retained in accordance with the provisions of this Law may only be transferred in accordance with its provisions for the purposes determined and with prior judicial authorization.

2. The transfer of information shall be carried out in electronic format only to authorized agents, and must be limited to the information that is essential for achieving the purposes indicated in Article 1. (...)

Article 7. Data transfer procedure.

1. Operators shall be obliged to transfer to the authorized agent the retained data referred to in Article 3 of this Law concerning communications that identify individuals, without prejudice to the judicial resolution provided for in the following section.

2. The judicial resolution shall determine, in accordance with the provisions of the Criminal Procedure Law and in accordance with the principles of necessity and proportionality, the retained data that must be transferred to the authorized agents.

3. The execution period of the transfer order shall be that set by the judicial resolution, taking into account the urgency of the transfer and the effects of the investigation in question, as well as the nature and technical complexity of the operation.

If no other period is established, the transfer must be carried out within 7 calendar days from 8:00 a.m. on the calendar day following that on which the obliged party receives the order. (underlined by us)”

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Notwithstanding the possibilities for the preservation of call records available on the current terminals of the users themselves (for example, on their own devices), we understand that the Law does not assign any notarial service obligation to telecommunications operators. On the contrary, the obligation of preservation and therefore, the basis for the legitimacy of data processing, would clearly have a teleological function restricted to collaboration with the authorized agents enabled by the corresponding and proper judicial resolution.

All of this must be assessed together with the rights of third parties involved in the calls, to the extent that attention to the right in the manner requested by the claimant – not authorized by Law – could imply a breach of the reasonable expectations regarding the processing of the personal data of such third parties, by the subjects obligated to the aforementioned preservation requirement.

The responding party continues to point out that in EXP202305727 “(...) DIGI conveyed the following considerations which, mutatis mutandi, are fully applicable to the present case:

“FIRST.- That this Party reiterates the exposition of facts and arguments presented in each of our writings concerning the present file, which developed the following issues:

1º) That the balancing of rights and obligations should take into account not only those of DIGI and the claimant but also with respect to third parties, as well as the restrictions described in Law 25/2007 of October 18, on the preservation of data related to electronic communications and public communications networks. That is, the limitation of processing exclusively for the provision to the Authorized Agents and Judicial Bodies, as provided in said Law.

2º) That the specification in the transfer of the resource for the period (01/11/2022 to 21/12/2022) requested does not change its nature as incoming calls whose sole purpose of preservation is the provision to the State bodies indicated in the aforementioned Law.

3º) That, coherently, this type of information is available to the Judicial Bodies which, should they deem the request made by the claimant through said Judicial Bodies pertinent and appropriate, could and indeed can require it from this operator as part of the powers of said Bodies, all following the applicable procedural and constitutional guarantees.

4º) That DIGI understands – in good faith, without having any incentive other than respect for the Law and in the best exercise of diligence – that Law 25/2007 constitutes an exception to the fundamental right to data protection, and likewise to the right to the guarantee of the secrecy of communications (which could also be affected in the event of disclosing information about certain communications to third parties other than the Authorized Agents, as defined in said Law). Therefore, as such a restriction, it must be interpreted restrictively in all its application.

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Consequently, given the teleological function that limits the norm, the potential impact on the rights of third parties (at least, the caller, if not also potential third-party users of the line) and the provision for its request via Courts of Justice, we consider that it would not be appropriate for DIGI to provide the details of the information requested directly to the claimant.

SECOND.- The resolution granting the claimant's appeal for reconsideration is based on an example from Guide 1/2022 of the European Data Protection Committee that refers to messaging services. It should be noted that the idiosyncrasy of messaging services entails significant material differences compared to the communication channel based on calls.

Indeed, there is a wide variety of messaging services. Most of them typically presume the need for the final recipient to have different types of keys to access the messaging system. However, calls can be answered by individuals other than the usual user of the line. Furthermore, it is very common in the

telecommunications sector for a line to be registered in one person's name while the user is different: a child, a partner, etc. In this regard, the Agency would agree that the rights of a line holder (access to consumption data that justifies billing) cannot imply an absolute invasion of the protective field established by the right to the secrecy of telecommunications of third parties (sender and receiver – different from the holder).

This uniqueness means that the application of the example – which is merely an interpretation of the Supervisor without legal standing – of messages to a call service cannot be carried out directly, and therefore, must take into account what is indicated in point FIRST.

THIRD.- DIGI can only emphasize that the user would have two avenues to access the information about incoming calls that they request:

- i) The terminal itself should retain such calls unless, for example, they have been deleted by someone who had access to the call application of that terminal.
- ii) If it were to defend their legitimate legal interests, the judicial route remains available to request them.

FOURTH.- In DIGI's opinion, it should be understood that the fundamental rights of third parties prevail and the application of the limits of Law 25/2007 in the present case, and that the requested information should not be provided.

Regarding the present procedure, the party being claimed alleges that “(...) the current claimant specifies their desire not in the incoming calls, but rather very particularly in the missed calls and, even, those that may have been made from hidden phone numbers. In this latter sense, it should be noted that, by itself, the concealment reinforces, if anything, the allegations made above.

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Furthermore, there is a specific legal framework that establishes the rights of users regarding the concealment of their identification and its effects. Thus, Article 65.1 of Law 11/2022, of June 28, General Telecommunications Law on the Specific Rights of End Users and Consumers of Publicly Available Electronic Communications Networks and Services states:

“(...) o) the right to prevent, through a simple and free procedure, the presentation of the identification of their line in the calls they generate or the presentation of the identification of their line to the user who makes a call to them.

End users may not exercise this right when it comes to emergency communications through the emergency number 112 or communications made to entities providing emergency services as determined by royal decree.

For a limited period of time, end users may not exercise this right when the subscriber to the destination line has requested the identification of malicious or nuisance calls made to their line;

p) the right to prevent, through a simple and free procedure, the presentation of the identification of the originating line in incoming calls and to reject incoming calls in which such line does not appear identified.

In this case and in the previous one, operators providing publicly available interpersonal communication services based on numbering, as well as those operating public electronic communications networks, must comply with the conditions determined by royal decree regarding the display, restriction, and suppression of the identification of the originating and connected line.”

In this regard, we have no record of any prior request from the claimant demanding the exception of the last part of o) (that is, “when the subscriber to the destination line has requested the identification of the malicious or nuisance calls made to their line”).

Therefore, the exception that would allow the recipient of the calls to know this data has not occurred.

The contrary would constitute an infringement of the rights recognized by Article 65 of the General Telecommunications Law regarding the senders who choose to make their calls in "hidden" mode. And without prejudice to the other right that this Law contemplates in section p) and that assists the holders

of the destination line, that is, “the right to reject incoming calls in which such line – the originating line – does not appear identified.”

Consequently, DIGI understands that its actions have been in accordance with the need to balance rights and interests among those affected by the access request.

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THIRD: According to Articles 64.1 and 65.5 of the LOPDGDD, the decision regarding the admission or inadmission of the claim must be notified to the claiming party within a period of three months. If this notification does not occur after this period, when the claim concerns the lack of attention to a request for the exercise of rights, the procedure will be considered initiated from the date on which three months have elapsed since the claim was received by the Agency.

In light of the above, and considering that the claim was submitted to this Agency on February 15, 2024, the procedure for addressing the request for the exercise of rights is considered initiated on May 15, 2024.

The admission agreement was notified to both parties, and the claimed party was granted a hearing period, to present any allegations they deemed appropriate within ten working days.

The claiming party has submitted a document to this Agency indicating that “(...) it should be noted and emphasized that what is being requested from the company Digi Spain Telecom, S.L. is, solely and exclusively with the data of numbering, date, and time, the list of unanswered / 'missed' calls (including, if applicable, those from hidden numbers, reflected as such but with date and time) between ***DATE.1 and ***DATE.2.”

The claimed party stated, in summary, that they received an email on October 17, 2023, from the claiming party requesting access to the call traffic of the line under their ownership ***PHONE.1, between the dates ***DATE.1 and ***DATE.2, and that, on October 24 of the same year, they responded with the record of the call traffic made from the identified line, as well as the consumption made in this regard up to that date.

“Additionally, in the same communication, the Claimant expresses their desire to receive all calls received on their line, including those unanswered, as well as those that may have been made from a hidden number. That is, they request the calls made to their line by third parties.

DIGI also responded to this new request within the timeframe granted for this purpose. In this response, the applicant was informed that their right of access did not extend to the requested information regarding calls made from other lines, as established by the data protection regulations themselves, which expressly set limitations on the exercise of the right of access (Article 23 of the General Data Protection Regulation, hereinafter, “GDPR”). Therefore, and in accordance with DIGI's privacy protocols, the Claimant was informed of the impossibility of providing the additional requested information.

At this point, it is clarified that, in any case, the Claimant has the possibility of accessing the requested information on their own terminal, which keeps a record of such calls unless the user themselves has decided to delete this information.”

The claimed party states that the legitimacy for the processing of personal data related to outgoing calls or calls made from the claiming party's line is

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finds, among other things, in the need to justify the pricing and charging for the services provided to its clients.

"Notwithstanding the above, such legitimization does not extend to incoming or received calls, that is, those made from other lines, owned by third parties, which are not processed by DIGI in the framework of the execution of the service provision contract to its clients. The possibility of processing information related to incoming calls has specific regulation, contained in Articles 3 and 4 of Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, and which does not refer to a relationship between operators and the owners of the lines,

but rather that such data must be retained for the fulfillment of specific obligations and can only be made available to third parties in cases explicitly stated in the regulation.

Thus, according to the aforementioned regulation, the processing of these data is restricted exclusively to collaboration with authorized agents, always enabled by the corresponding and proper judicial resolution, as specified literally (Article 6.1):

“6.1. The data retained in accordance with the provisions of this Law may only be transferred in accordance with its provisions for the purposes determined and with prior judicial authorization.”

As a result of the above, there is no legitimization or legal basis that supports the provision of the additional information requested by the Claimant, since it would not be included within the information to be made available in the context of exercising rights as defined in the GDPR, nor does the regulation governing its retention contemplate this possibility.

Moreover, as evidenced by the previous excerpt, the regulation limits the processing of such data to making it available to law enforcement agencies, as well as to the Administration of Justice. This effectively constitutes the limitation on the right of access provided for in Article 23 of the aforementioned GDPR, which requires a specific legal provision, in order to preserve security, public safety, and the prevention, investigation, detection, or prosecution of criminal offenses.

Consequently, the lack of legal basis for the processing of incoming calls and the absence of legal authorization both in the special regulation and in the general one, prevent this Party from granting the Claimant access to the requested information.

(...) Additionally to the above, in the context of this File, it is crucial to consider the rights of third parties involved in the calls received on the line regarding which the Claimant requests information.

In this regard, Recital (63) of the GDPR states that the exercise of the right of access:

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"It must not negatively affect the rights and freedoms of third parties, including trade secrets or intellectual property and, in particular, the intellectual property rights that protect software programs."

(...)

Firstly, providing the Claimant with information regarding incoming calls involves making available personal data of third parties, for which, as previously stated, it is not authorized. This lack of authority is further evidenced in cases of calls from withheld numbers, where the caller intentionally chooses not to identify themselves. Thus, complying with the Claimant's request would violate not only the applicable regulations for teleoperators previously mentioned but also the rights and privacy of third parties.

Regarding calls received from a withheld number, we must again refer to the applicable regulations for teleoperators concerning end users. Article 65 of Law 11/2022, of June 28, General Telecommunications Law, relating to the specific rights of end users and consumers of publicly available electronic communications networks and services, in its section 1. o), includes the following consideration:

"The specific rights of end users and consumers, as applicable, of publicly available electronic communications networks and services are, among others, the following, which will be developed by royal decree:

[...]

o) the right to prevent, through a simple and free procedure, the presentation of the identification of their line in the calls they generate or the presentation of the identification of their line to the user who makes a call to them.

End users may not exercise this right when it comes to emergency communications through the emergency number 112 or communications made to entities providing emergency services as determined by royal decree. For a limited period of time, end users may not exercise this right when the subscriber to the destination line has requested the identification of malicious or nuisance calls made to their line."

In this context, providing this information - the calls received from withheld numbers - is completely contrary to the rights that protect those who, authorized by the General Communications Law, make calls using a mechanism to conceal their identity. Therefore, providing this information under the Claimant's right of access directly infringes upon the rights recognized for third parties.

The exception provided by the General Telecommunications Law is in no case applicable to the present File, as there are no records in DIGI of any complaint, grievance, or opposition from the Claimant regarding calls made from withheld numbers as malicious or nuisance calls.

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Lastly, as DIGI has been able to verify in its systems, the Claimant holds ownership of two telephone lines. In this regard, it is important to remember that, commonly, it is a person from the family unit who contracts with the telecommunications operators and subsequently assigns the use of the contracted services to other members within the family unit.

In particular, it is not really possible to know if this is the case in the present File, but it is an element to be considered by the telecommunications operators when providing data related to the calls received on the lines owned by the contractors, which, not in all cases, are the actual users of the line.

Taking this last point into account, the Claimant is not authorized by the regulations to receive this information and, in any case, DIGI is not legitimized by any legal basis to carry out this data processing.

The Respondent adds that "(...) As evidenced by the attached documentation, DIGI has already proceeded to address, on October 24, 2023, the request for the exercise of the Claimant's right of access to their call log, being contrary to law to grant access to the missed calls received, including those received from a withheld number."

FOURTH: After examining the document submitted by the Respondent, it is forwarded to the Claimant, so that, within ten working days, they may formulate any allegations they deem appropriate, stating, in summary, that "(...) I reiterate and attempt to specify or clarify further what I have been requesting since October 2023.

And it is nothing more than, just as I normally receive a monthly bill from Digi where, among other concepts and information, the details of calls appear with: date, time, originating number, destination number, destination, country of origin, country of destination, type of call, duration (min) and amount, what I am requesting is nothing more than that same detail of calls, but only and exclusively, with date, time, and originating number, between the days ***DATE.1 and ***DATE.2 of the received and unanswered calls (including those from withheld numbers as such or unidentified and rejected). It is not necessary to include their duration, in the case of answered received calls, nor the calls made, of which I already have monthly information. (...)"

FIFTH: After granting a hearing to the Respondent, they reiterate, in summary, the allegations already presented previously.

The Respondent adds

SECOND.- On the technical impossibility of identifying withheld calls by DIGI.

As already pointed out by this party in its previous allegations, while DIGI has a contractual legal basis (collection of services) to retain data on calls made from its customers' terminals, this legal basis does not apply in the case of retaining data on received calls.

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Thus, as previously stated, the retention of incoming call data is carried out in compliance with Law 25/2007, for its possible judicial availability and for the Security Forces and Corps.

As a result of the above, the record managed by DIGI to comply with Law 25/2007, its Charging Data Record (hereinafter, "CDR"), does not retain identified or categorized which calls were made with withheld numbers, insofar as the record is configured to comply with the terms of Law 25/2007. Although the "label" or categorization of a call as withheld is received and respected in DIGI's network (it is transferred by the network in such a way that the called DIGI subscriber, upon receiving the call, effectively sees the withheld number), this categorization is not reflected nor has it ever been reflected in the CDRs.

In this sense, DIGI does not have any legitimacy to retain the identification of which incoming calls were made with withheld numbers, as no regulation supports it in retaining that information. As the GDPR itself requires, the processing of personal data must always be governed by the principle of minimization (Article 5.1(c)).

Thus, since neither Law 25/2007 nor the technical specifications that establish the content and information that must be retained in the CDR (specification of ETSI TS 132 205 V5.9.0) require the retention of such information, DIGI does not have legitimacy for it.

In this regard, I would like to emphasize that DIGI, in order to demonstrate the technical operation of call withholding, that not even the equipment involved in call termination visualizes or accesses such information about which calls are made from withheld numbers.

As a result of the above, it is evident not only the lack of legitimacy of DIGI to process the information regarding which incoming calls have been made with withheld numbers, but also the technical impossibility in this regard, as the equipment and technical systems are not configured for it.

This implies that complying with the Claimant's request (providing them with a detail of incoming calls, identifying those made from withheld numbers) is impossible for DIGI: this party does not have the technical capacity to discriminate which incoming calls have been made from withheld numbers and which have not, making it impossible to respond positively to the Claimant's request for information.

At this point, it is necessary to highlight that altering the operation of the call reception system:

- Has an impact on the operation and performance of the equipment, which are not configured to record this parameter.

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- Alteration at the level of incoming traffic reconciliation, as DIGI would have to collect data from at least 10 different nodes, with the risk that some cases may be overlooked, for example, that the call does not correctly transmit the concealment parameter, making it impossible to guarantee that calls with hidden numbers are obscured, in the event of providing incoming call traffic to a customer.

- Lack of guarantees. It forces operators to comply with something that cannot be guaranteed, because, as the terminating operator of the calls, it cannot always see if the call was hidden – with the consequent responsibilities that this may generate for DIGI towards the calling user, if we provide the data of a hidden call to the called user, which will be analyzed in detail below.

- It implies the imposition of artificially creating a new data processing that did not previously exist.

Incoming calls are only retained for the purposes of complying with Law 25/2007;

- It has an impact at the level of internationally standardized technical specifications, as well as at the level of interconnection between operators.

In short, requiring operators to provide their customers with incoming call traffic creates an unforeseen obligation that is unmanageable for operators, which is not contemplated in the operation of networks, nor in any regulation, and currently, there is neither legitimacy nor technical capacity to process that data.

As of today, incoming traffic is only provided to the Security Forces and Corps, in accordance with Law 25/2007.

As previously stated, DIGI does not have the capacity to meet this unforeseen obligation: it cannot comply with the request of the applicant to provide their incoming call traffic while obscuring the calling number in the case of hidden calls, because it does not have that information nor the capacity to

retrieve it, regarding which of those incoming calls came with the hidden number.”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this function to cooperate with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month and to prove that it had provided the complainant with the due response.

The result of this transfer did not allow for understanding the claims of the complainant to be satisfied. Consequently, on May 15, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure,

objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Article 12 of the GDPR and Article 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected individual lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected individual to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected individual chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected individual.

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Like the rest of the rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

In the case analyzed here, it has been established that the claimant requested the respondent access to the record of incoming and outgoing calls on their mobile phone between ***DATE.1 and ***DATE.2, including "Details of UNANSWERED RECEIVED CALLS including those from 'hidden number as such' (commonly known as 'missed calls')," and that the respondent provided the details of their consumption, stating "(...) We inform you that we do not have the incoming or missed calls as you

requested."

During the processing of the procedure, the respondent indicated that the balancing of rights and obligations should be taken into account not only for DIGI and the claimant but also concerning third parties, as well as the restrictions described in Law 25/2007 of October 18, on the retention of data related to electronic communications and public communications networks. That is, the limitation of processing exclusively for the provision to Authorized Agents and Judicial Bodies, as provided in that Law.

In response to such statements, it should be noted, first of all, regarding the alleged restrictions that Law 25/2007 would impose on the right of access, that the Guidelines 1/2022, on the rights of data subjects — Right of access Version 2.1 of March 28, 2023, from the European Data Protection Committee, state that

"6.1. General observations

165. The right of access is subject to the limits resulting from Article 15, paragraph 4, of the GDPR (rights and freedoms of others) and from Article 12, paragraph 5, of the GDPR (manifestly unfounded or excessive requests). Furthermore, Union or Member State legislation may restrict the right of access in accordance with Article 23 of the GDPR. Exceptions related to the processing of personal data for scientific, historical, or statistical purposes or for archiving purposes in the public interest may be based on Article 89, paragraph 2, and on Article 89, paragraph 3, of the GDPR, and the

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Exceptions for processing carried out for journalistic purposes or for academic, artistic, or literary expression may be based on Article 85, paragraph 2, of the GDPR.

166. It is important to note that, apart from the aforementioned limits, exceptions, and possible restrictions, the GDPR does not allow for other exemptions or exceptions to the right of access. This means, among other things, that the right of access does not have any general reservation regarding proportionality concerning the efforts that the data controller must make to comply with the requests of data subjects under Article 15 of the GDPR. Furthermore, it is not permitted to limit or restrict the right of access in a contract between the data controller and the data subject.

Similarly, the same guidelines interpret the scope of the aforementioned right of access, denying an excessively restrictive interpretation and allowing for the possibility that its exercise may include data that may affect other individuals:

The scope of the right of access is determined by the scope of the concept of personal data as defined in Article 4, paragraph 1, of the GDPR. Apart from basic personal data, such as name, address, phone number, etc., a wide variety of data may be included in this definition, such as medical findings, purchase history, creditworthiness indicators, activity logs, search activities, etc. Personal data that has been subjected to pseudonymization remains personal data rather than anonymous data. The right of access refers to the personal data of the person making the request. This should not be interpreted excessively restrictively and may include data that may also affect other individuals, for example, the communication history involving incoming and outgoing messages.

Finally, regarding access to traffic and location data retained in compliance with Law 25/2007, of October 18, on the retention of data related to electronic communications and public communications networks, it should be noted that the main objective of Law 25/2007 is to establish the obligation of telecommunications operators to retain certain data generated or processed by them, in order to make it available to authorized agents. Authorized agents include, among others, members of police forces authorized for this purpose within the framework of a criminal investigation for the commission of a crime.

In this regard, the Law respects the rulings issued by the Constitutional Court concerning the right to the secrecy of communications, a respect that is articulated, in particular, through two guarantees: firstly, that the data subject to the retention obligation are data exclusively linked to the communication, whether by telephone or via the Internet, but in no case revealing the content of the communication;

and secondly, that the transfer of such data affecting a specific communication or communications will always require prior judicial authorization.

Article 1.1 of the aforementioned Law 25/2007 states that

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“1. This Law aims to regulate the obligation of operators to retain data generated or processed in the context of providing electronic communications services or public communications networks, as well as the duty to transfer such data to authorized agents whenever required through the corresponding judicial authorization for the detection, investigation, and prosecution of serious crimes contemplated in the Penal Code or in special criminal laws.”

And Article 3, Data subject to retention:

“1. The data that must be retained by the operators specified in Article 2 of this Law are as follows:

a) Data necessary to trace and identify the origin of a communication:

1º Regarding fixed network telephony and mobile telephony:

i)

Calling phone number.

ii)

Name and address of the subscriber or registered user. (...)

b) Data necessary to identify the destination of a communication:

1º Regarding fixed network telephony and mobile telephony:

i)

The number or numbers dialed (the destination phone number or numbers) and, in cases where other services are involved, such as call forwarding or transfer, the number or numbers to which the calls are transferred.

ii)

The names and addresses of the subscribers or registered users. (...)

c) Data necessary to determine the date, time, and duration of a communication:

1º Regarding fixed network telephony and mobile telephony: the date and time of the beginning and end of the call or, where applicable, of the messaging service or multimedia service.

(...)

d) Data necessary to identify the type of communication.

1º Regarding fixed network telephony and mobile telephony: the telephone service used: type of call (voice transmission, voicemail, conference, data), supplementary services (including call forwarding or transfer) or messaging or multimedia services used (including short message services, advanced multimedia services, and multimedia services).

(...)

e) Data necessary to identify the communication equipment of the users or what is considered to be the communication equipment:

1º Regarding fixed network telephony: the originating and destination phone numbers.

2º Regarding mobile telephony:

i)

The originating and destination phone numbers.

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ii) The International Mobile Subscriber Identity (IMSI) of the party making the call.

iii) The International Mobile Equipment Identity (IMEI) of the party making the call.

- iv) The IMSI of the party receiving the call.
- v) The IMEI of the party receiving the call.
- vi) In the case of anonymous prepaid services, such as services with prepaid cards, the date and time of the first activation of the service and the location tag (the cell identifier) from which the service was activated.

(...)

f) Data necessary to identify the location of the mobile communication equipment:

1º The location tag (cell identifier) at the beginning of the communication.

2º The data that allows for the geographical location of the cell to be established, by reference to the location tag, during the period in which the communication data is retained.

2. No data revealing the content of the communication may be retained under this Law.”

Article 6, General rules on data transfer, of the aforementioned law establishes that:

“1. The data retained in accordance with the provisions of this Law may only be transferred in accordance with its provisions for the purposes determined and with prior judicial authorization.”

Article 9 of the cited Law 25/2007, Exceptions to the rights of access and cancellation, states that:

“1. The data controller shall not communicate the transfer of data made in accordance with this Law.

2. The data controller shall deny the exercise of the right of cancellation under the terms and conditions provided in Organic Law 15/1999, of December 13.”

The exceptions regarding the exercise of the rights in Articles 15 to 22 of the GDPR must be established by law. Furthermore, from the transcription of Article 9, it can be easily noted that no restriction is established regarding the possibility of exercising the right of access. It only contains the obvious precautions that the data subject does not have to be informed of the transfer of the data (an obvious issue given that it concerns criminal investigations), and that the right to erasure cannot be exercised.

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In the present case, from the examination of the documentation provided by the parties, it has been established that the claimant requested the defendant access to the records of incoming and outgoing calls from their mobile phone during a period in 2023, and that the defendant only provided the record of outgoing calls.

However, according to what has been stated, the denial of access cannot be based on a supposed limitation of the right of access imposed by Law 25/2007, since, as has already been pointed out, this law does not establish any limitation for the exercise of the right of access, specifically and for the case examined, nor expressly regarding the list of incoming calls requested by the claimant.

Now, it must be specified, secondly, that the right of access must be reconciled with the provision of Article 15.4 of the GDPR, that is, it must not negatively affect the rights and freedoms of third parties. In this way, the data controller has the burden of demonstrating that the rights and freedoms of others would be affected in order to limit the access of the interested party to the personal data concerning them.

In this regard, the Guidelines 1/2022 indicate that “The data controller must be able to demonstrate that the rights or freedoms of others would be negatively affected in the specific situation. The application of Article 15, paragraph 4, should not lead to the total denial of the interested party's request; it would only lead to the exclusion or illegibility of those parts that may have negative effects on the rights and freedoms of others.”

Thus, among other rights that may be affected - a matter that the data controller must evaluate - we will mention regarding incoming calls made with a withheld number, that Article 65.1 of Law 11/2022, of June 28, General Telecommunications Law (LGTel) recognizes, in its letter o), this right of subscribers. It indicates that end users and consumers of publicly available electronic communications networks and services shall have “the right to prevent, through a simple and free procedure, the

presentation of the identification of their line in the calls they generate or the presentation of the identification of their line to the user making a call to them.” However, with the following limitation, as “this right cannot be exercised when it comes to emergency communications through the emergency number 112 or communications made to entities providing emergency services as determined by royal decree. For a limited period of time, end users may not exercise this right when the subscriber to the destination line has requested the identification of malicious or nuisance calls made to their line.”

In this regard, it is worth recalling that the Regulation on the conditions for the provision of electronic communications services, the universal service, and the protection of users, approved by Royal Decree 424/2005, of April 15,

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provides regarding the suppression of the identification of the line of origin, in its articles 72, 77, and 78, the following:

Article 72. Suppression at origin, call by call, of the identification of the line of origin.

“(…).

The suppression at origin by the user, call by call, of the identification of the line of origin in public fixed telephone networks shall be carried out by dialing a code on the telephone accesses made through these networks.

For the purposes established in the previous paragraph, the Secretary of State for Telecommunications and the Information Society shall assign a short number as a code for the suppression at origin by the user, call by call, of the identification of the line of origin.

The suppression at origin by the user, call by call, of the identification of the line of origin in mobile telephone networks, in its GSM modality and in the integrated services digital network, shall be carried out by dialing codes that comply, in order of preference, with European technical regulations, international regulations, international operator agreements, and, in their absence or as a complement, with national technical specifications.

The dialing of the codes mentioned in the previous paragraphs must be done prior to the selection of the operator, if applicable, and to the number of the recipient subscriber of the call.

(…)”

Article 77. Elimination of the suppression at origin of the identification of the line of origin.

“The operators mentioned in section 1 of article 71 shall eliminate the suppression at origin marks of the identification of the line of origin when the destination of the calls corresponds to entities that provide emergency call services through number 112 and others authorized for the attention of emergencies or those related to public safety or national defense. The application of the mechanism for the elimination of suppression at origin marks of the identification of the line of origin for emergency services other than those attended through number 112 must be approved, at the request of the entities providing the aforementioned emergency services or ex officio, in advance and for each particular case or type of emergency service, by resolution of the Secretary of State for Telecommunications and the Information Society.

The application of the mechanism for the elimination of suppression at origin marks of the identification of the line of origin for reasons of public safety or national defense shall be carried out when so established by resolution of the competent Ministry in these matters. The resolution shall be processed and approved following the principles of transparency and proportionality, and shall be communicated to the Secretary of State for Telecommunications and the Information Society and to the other Regulatory Authorities referred to in article 46 of Law 32/2003, of November 3, General Telecommunications.

Likewise, the suppression at origin marks of the identification of the line of origin may be eliminated for a limited period of time when the subscriber has requested the identification of malicious or annoying calls, in accordance with the provisions of the current regulations at each moment regarding the protection and suspension of the guarantees of the secrecy of communications.” (the underlining is

ours)

Article 78. Permanent suppression at destination of the identity of the line of origin.

“The Ministry of Industry, Tourism and Trade may establish, to protect the rights of citizens, especially the right to privacy, that, free of charge, certain destinations of calls associated with certain services do not have the facility for the identification of the line of origin.” (the underlining is ours)

Therefore, from such provisions, it follows that the regulations have delineated the cases and circumstances in which the recipient of a call with hidden numbering may know the identification of the line of origin. Outside of these cases, the holder of the line of origin has an expectation that their telephone line will remain hidden from the recipient of the call, that is, they have an expectation of privacy that may be violated by the subsequent knowledge of this information by the interested party.

Consequently, the right of access to this information could imply an interference with the right to privacy of the holders of the lines of origin of the calls. And on this matter, article 15.4 of the GDPR states that the right of access must not negatively affect the rights and freedoms of third parties.

In any case, as already indicated, while the right to data protection is not an absolute right, article 15.4 of the GDPR should not be interpreted in such a way that its application results in denying information to the interested party.

The aforementioned Guidelines 1/2022 provide that when interpreting article 15, section 4, of the GDPR, special precautions must be taken not to unjustifiably expand the restrictions established in article 23 of the GDPR, which only...

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are permitted under strict conditions. And it will be the data controller who reconciles the conflicting rights in each case. They state the following:

173. With regard to recital 4 of the GDPR and the justification of Article 52, paragraph 1, of the Charter of Fundamental Rights of the European Union, the right to the protection of personal data is not an absolute right. Therefore, the exercise of the right of access must also be weighed against other fundamental rights in accordance with the principle of proportionality. When the assessment of Article 15, paragraph 4, of the GDPR demonstrates that compliance with the request has negative effects on the rights and freedoms of other participants (phase 1), the interests of all participants must be weighed considering the specific circumstances of the case and, in particular, the likelihood and severity of the risks present in the communication of the data. The data controller must attempt to reconcile the conflicting rights (phase 2), for example, by applying appropriate measures that mitigate the risk to the rights and freedoms of others. As emphasized in recital 63, the protection of the rights and freedoms of others under Article 15, paragraph 4, of the GDPR should not result in a refusal to provide all information to the data subject. This means, for example, when applying the limitation, that information relating to other persons should be rendered unreadable to the extent possible instead of refusing to provide a copy of the personal data. However, if it is impossible to find a solution to reconcile the relevant rights, the data controller must decide in a subsequent step which of the conflicting rights and freedoms prevails (phase 3).

Therefore, it must be assumed that the complaining party has the right to access the requested information, but DIGI, as the data controller, will have to assess whether there are rights and freedoms of others that are negatively affected, which these rights and freedoms are, if applicable, as well as weigh the conflicting rights and seek solutions that reconcile the data subject's right of access (as it cannot simply deny access) while avoiding negative impacts on the rights and freedoms of others. Furthermore, it should be clarified that the right of access will be exercised by the data subject in relation to the personal data "concerning him or her" (Article 15.1 GDPR). Therefore, the responding party must take the necessary precautions to ensure that only the personal data concerning the complaining party is provided to that complaining party, as the latter is the user (not just the holder) of the mobile phone line. All of this is in consideration of the risks to the rights and freedoms of the data subjects.

Consequently, it is appropriate to uphold the complaint that led to this procedure in order for the responding party to provide the requested access in the terms previously outlined or to deny it with justification and reasoning indicating the causes for which the request cannot be granted, in accordance with the provisions of this resolution. In view of the cited provisions and others of general

application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge DIGI SPAIN TELECOM, C/ Jorge Juan, 6

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S.L. with NIF B84919760, to send to the complaining party, within ten working days following the notification of this resolution, a certification addressing the requested right or to deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to DIGI SPAIN TELECOM, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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